

Prem Kishor Trivedi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2014 · Writ-C No. 20749 of 2014 · **Writ disposed; relegated to Clause 6.5; coercive recovery stayed.**

HEADNOTE

A consumer disputing a post-disconnection recovery citation and a later bill issued in his deceased father's name was sent to the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court would not try highly disputed facts on affidavits, required an application within one month and a decision within the clause's timeline, expressed no view on merits, and recorded that coercive steps would await that decision.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 6 January 2014 for Rs 5,065 and an electricity bill dated 2 February 2014 for Rs 1,19,417, both issued in the name of his deceased father, Ram Kumar Trivedi. He pleaded that his father had obtained a permanent disconnection and paid the outstanding bill on 23 October 2004, so no further demand could arise. The Power Corporation said the dispute raised questions of fact for the competent authority under Clause 6.5(b) of the 2005 Code, not a writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-clause-6.5-forum

HOLDING

A writ challenging a recovery citation and electricity bill after an alleged permanent disconnection, issued in a deceased consumer's name, is not to be decided on affidavits where the facts are highly disputed. Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the remedy: the consumer is to apply to the competent authority within one month, and that authority is to decide within the time stipulated in the clause. The Court expressed no opinion on merits. On the licensee's statement, coercive measures are not to be taken until that decision if the consumer complies. ¶ 5-7

FLAG Court directed Clause 6.5; the licensee had invoked Clause 6.5(b).

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 6.1.2014 AND THE BILL DATED 2.2.2014, INCLUDING WHETHER ANY DEMAND SURVIVED THE ALLEGED PERMANENT DISCONNECTION OF 23.10.2004

Court expressly declined to opine; competent authority under Clause 6.5 to decide. ¶ 6